

25STCV17500 25STCV17500

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Case Number: 25STCV17500 Hearing Date: August 24, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 24, 2026

CASE NUMBER

25STCV17500

MOTIONS

Demurrer to First Amended Complaint;

Motion to Strike Portions of First Amended Complaint

MOVING PARTY

Defendant FCA US LLC

OPPOSING PARTY

None

MOTION

Plaintiff Amanda

Kollbeck ("Plaintiff") brought the instant action against Defendant FCA US LLC ("Defendant"), alleging she bought a defective motor vehicle Defendant manufactured. Defendant demurs to Plaintiff's operative first amended complaint and also moves to strike portions of the first amended complaint. Plaintiff has not opposed the motions.

ANALYSIS

"It is black

letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the court must "liberally construe[]" the allegations of the complaint. (Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

Any party, within

the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322(b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); Stafford v. Shultz (1954) 42 Cal.2d 767, 782.)

Third Cause of Action: Violation

of Civil Code Section 1793.2, Subdivision (a)(3)

Pursuant to Civil

Code section 1793.2, subdivision (a)(3), a vehicle manufacturer is required to "[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." Plaintiff alleges Defendant "failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during

the express warranty period.” (First Amended Complaint, ¶ 59.) Plaintiff’s allegations suffice for pleading purposes. Defendant may obtain further information regarding Plaintiff’s claim in this regard through discovery. (See e.g., *Khoury v. Maly’s of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616 [“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures”].)

The demurrer to the third cause of action is overruled.

Sixth Cause of Action: Fraudulent Inducement-Concealment

Plaintiff

must allege fraud with particularity. “This means: (1) general pleading of the legal conclusion of fraud is insufficient; and (2) every element of the cause of action for fraud must be alleged in full, factually and specifically, and the policy of liberal construction of pleading will not usually be invoked to sustain a pleading that is defective in any material respect.” (*Wilhelm v. Pray*, Price, Williams & Russell (1986) 186 Cal.App.3d 1324, 1331.) “There are four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.” (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336, internal quotations and citations omitted.)

Plaintiff

alleges Defendant had exclusive knowledge of defects in the lithium ion battery in the vehicle due to complaints from consumers, pre-production testing data, and other internal sources (First Amended Complaint, ¶¶ 76, 79), and Defendant, nonetheless, concealed the defects from Plaintiff (*id.*, ¶ 77). However, a claim for fraud must result from “direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (*Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 312.) Plaintiff does

not allege specific facts regarding Plaintiff's interactions with Defendant such that Defendant concealed these facts from Plaintiff. Therefore, the demurrer to this cause of action is sustained, but Plaintiff will have an opportunity to amend it.

Motion to Strike

As

the Court sustains the demurrer to the sixth cause of action for fraud, the motion to strike the prayer for punitive damages is moot. However, the Court notes Plaintiff has not alleged facts to support a claim for punitive damages.

In

ruling on a motion to strike punitive damages, "judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) To state a prima facie claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 721 (College Hospital).) Pursuant to Civil Code section 3294, subdivision (a), a plaintiff must allege the defendant has been guilty of oppression, fraud, or malice. "Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (College Hospital, supra, 8 Cal.4th at p. 725.) "The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (Grieves v. Superior Ct. (1984) 157 Cal.App.3d 159, 166, internal citations and footnotes omitted.)

Plaintiff

does not allege any specific facts to show Defendant, through an officer, director, or managing agent, acted with oppression, fraud, or malice.

CONCLUSION AND ORDER

Defendant's

demurrer to the sixth cause of action in the first amended complaint is sustained with leave to amend. The demurrer is otherwise overruled.

Sustaining the
demurrer renders the motion to strike moot.

Plaintiff is to
file an amended complaint within 20 days of notice of this order.

Defendant is ordered
to provide notice of the Court's ruling and to file proof of service of same.